

HOUSE BILL 2648

By Hulsey

AN ACT to amend Chapter 76 of the Private Acts of 1917; as amended by Chapter 345 of the Private Acts of 1974; Chapter 292 of the Private Acts of 1978; Chapter 244 of the Private Acts of 1980; and Chapter 30 of the Private Acts of 2001; and any other acts amendatory thereto, relative to the city of Kingsport.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 76 of the Private Acts of 1917, and any other acts amendatory thereto, is amended by deleting Article III, Section 11 and substituting:

Sec. 11. Vice-mayor; appointment, function.

At the first meeting of the board after a general city election, said board shall choose from its membership a member to act in the absence, inability or failure to act of the mayor. Such member shall act as mayor during any temporary absence, inability or failure to act of the mayor, and whenever a vacancy occurs in the office of mayor, such member shall become mayor and hold office as such for the unexpired term.

SECTION 2. Chapter 76 of the Private Acts of 1917, and any other acts amendatory thereto, is amended by deleting Article XI, Section 5 and substituting:

Sec. 5. Due date for designated taxes; duty, authority of treasurer; warrants to collect delinquent taxes.

All taxes due to the City of Kingsport, except privilege and merchants ad valorem taxes, and street labor taxes, unless otherwise provided by ordinance, are due and payable on the 30th day of November of the year for which the taxes are assessed. The treasurer shall be custodian of the tax books and shall be the tax collector for the city.

As of the first day of December of the year for which the taxes are assessed, as in this section provided or as may be provided by ordinance, the tax books in the hands of the recorder shall have the force and effect of a judgment of a court of record, and the

recorder shall have power to issue distress warrants, alias and pluries distress warrants in the name of the City of Kingsport, to enforce the collection of said taxes against the person owning the property on January 10th, of the year for which the taxes are assessed, by a levy upon the personalty of such taxpayer; and such distress warrant shall be executed by the chief of police or other policeman of the City of Kingsport by a levy upon and sale of goods and chattels under the same provisions as prescribed by law for the execution of such process from a justice of the peace.

SECTION 3. Chapter 76 of the Private Acts of 1917, as amended by Chapter 292 of the Private Acts of 1978, Chapter 30 of the Private Acts of 2001, and any other acts amendatory thereto, is amended by deleting Article XV, Section 2 and substituting:

Sec. 2. Tentative appropriation ordinance; preparation, publication, adoption.

Upon receipt of such estimate, the board of mayor and aldermen shall prepare a tentative appropriation ordinance, which shall also be published in accordance with state law. Before final adoption of such tentative appropriation ordinance, the board of mayor and aldermen shall consider the same at a regular meeting held in accordance with state law and all voters and taxpayers may appear at said meeting and be heard in person or by attorney. The appropriation ordinance for each fiscal year shall be finally adopted before the first day of the fiscal year. Further appropriations and expenditures during the fiscal year after passage of the budget ordinance shall be by resolution of the board of mayor and aldermen as necessity and advisability shall become apparent.

The budget ordinance may be amended by ordinance. Further appropriations and expenditures during the fiscal year after passage of the budget ordinance shall be made by ordinance of the board of mayor and aldermen as the necessity and advisability shall become apparent.

SECTION 4. Chapter 76 of the Private Acts of 1917, as amended by Chapter 345 of the Private Acts of 1974, Chapter 244 of the Private Acts of 1980, and any other acts amendatory thereto, is amended by deleting Article XIX, Section 2 and substituting:

Sec. 2. Election; terms; interim appointment; nomination; president; oath; vacancies.

The members of the board of education shall be elected from the city at large by the qualified voters of the City of Kingsport at the general city election. The members of the board of education shall be elected for terms of office of four (4) years, and until their successors are elected and qualified. A board member shall be eligible for reelection.

Two (2) members shall be elected at the general city election in May, 1981, for four-year terms, and each four (4) years thereafter. Three (3) members shall be elected at the general city election in May, 1983, for four-year terms, and each four (4) years thereafter. Such elected board members shall assume office on the first day of September following their election.

Candidates for the office of a member of the board of education shall be nominated in the same manner as is provided for a candidate for the board of mayor and aldermen of the City of Kingsport.

The members of the board of education, at the first regular meeting following a general city election, shall elect one (1) of their number as president.

Before entering upon their duties, members of the board of education shall take the oath prescribed by the laws of Tennessee for such officers.

All vacancies in the board of education shall be filled by election of the board of mayor and aldermen; to serve only until the next general city election when such vacancy shall be filled for the remainder of the unexpired term by election by the qualified voters of the city. Any member elected to serve the remainder of an unexpired term shall assume office on the first day of July following their election.

SECTION 5. Nothing in this act shall be construed as having the effect of removing any incumbent from office or abridging the term of any official prior to the end of the term for which such official was elected.

SECTION 6. If any provision of this act or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to that end the provisions of this act are declared to be severable.

SECTION 7. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Kingsport. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the Secretary of State.

SECTION 8. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 7.